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LINE 10

25-CLJ-07223

WELLS FARGO BANK, NA VS KYLE A ROBERTSON

WELLS FARGO BANK, NA
KYLE A ROBERTSON

JON O. BLANDA

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

The Motion for Summary Judgment (the “Motion”) brought by Plaintiff Wells Fargo Bank, N.A. is GRANTED.

Background

Plaintiff alleges that on or about May 31, 2024, it issued Defendant a loan under a written agreement. (Complaint, p.3, BC-1, & Exh. A; *see also* Gibbons Decl., ¶¶ 9-10, & Exh. 1.) However, as of about March 20, 2025, Defendant stopped making payments on the account (Complaint, p.3, BC-2; *see also* Gibbons Decl., ¶¶ 20-21), leaving an unpaid balance of \$15,457.51 (Complaint, p.3, BC-4; *see also* Gibbons Decl., ¶¶ 21-22). Plaintiff seeks damages including attorney’s fees according to proof (Complaint, p.3, BC-5), and costs of suit (*id.*, p.3, BC-6).

On October 30, 2025, Defendant in pro per filed a form Answer that admits all of the statements of the Complaint. (Answer, box 3.b.) Therein, Defendant sets forth as an affirmative defense the statement that: (1) when he lost his income he called Plaintiff to request that payments be paused until he were earning income again, and Plaintiff agreed; (2) he received a statement and learned that his account was sent to collections, so he called Plaintiff again and was told that the account was still with Plaintiff and on hold; (3) he received a Summons and called Plaintiff’s counsel about ten times, with no response; and that he called Plaintiff’s legal department to recount this series of events, and his interlocutor told him that the agents with whom he had spoken were not supposed to say what he says they did, and that she would alert counsel of record that Defendant was trying to reach him to resolve the situation; and (4) as of October 28, 2025, he had not received a response from Defendant’s counsel. However, according to Plaintiff’s Qualified Witness, Betsy L. Gibbons, there is no record of any unresolved dispute on Defendant’s account (Gibbons Decl., ¶ 19).

Through its Motion, Plaintiff seeks summary judgment of the Complaint, which states a single cause of action.

Legal Standards for Summary Judgment

The California Code of Civil Procedure provides that “[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)

A motion for summary judgment be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

A plaintiff has met her or his “burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).)

If the plaintiff has met that burden, then the burden shifts to the defendant to show that:

- a triable issue of one or more material facts exists as to the cause of action or a defense thereto.

The defendant ... shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead,

- shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

(*Ibid.* (formatting and bullet points added).) Further:

The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76.)

The Court must consider all of the evidence and inferences reasonably drawn therefrom “in the light most favorable to” the party opposing the motion. (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Env’t Just. Found. v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (citations omitted).)

Legal Standards for Breach of Contract

A cause of action for breach of contract requires proof of the following elements:
(1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.

(*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239 (*Maldonado*).)

The Motion Is Granted.

The first *Maldonado* element is established. (Gibbons Decl., ¶¶ 9-10, & Exh. 1.) The second *Maldonado* element is established. (Gibbons Decl., ¶¶ 13-15, & Exh. 2.) The third *Maldonado*

element is established. (Gibbons Decl., ¶¶ 20-21, & Exhs. 1 & 2 (esp. p.55, in Exh. 2).) The fourth *Maldonado* element is established. (Gibbons Decl., ¶ 22, & p.55, in Exh. 2.) Since Plaintiff has proved each element of the breach of contract causes of action, entitling it to judgment thereon (Code Civ. Proc., § 437c, subd. (p)(1)), the burden shifts to Defendant to show the existence of a triable issue of material fact as to the cause of action or a defense thereto (*ibid.*).

To meet this burden, Defendant “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing” the existence. (*Ibid.*) However, Defendant has filed no Opposition to the Motion. (Code Civ. Proc., § 437c, subd. (b)(2).) While Defendant cannot rely on the denials of his pleadings to meet his burden on the Motion, Defendant’s Answer, even if it had been presented in Opposition, is unsworn, and consists only of Defendant’s account of how he had asked for his loan payments to pause but this action proceeded instead. (Answer, box 4.) As the Court of Appeal explains:

An issue of fact can only be created by a conflict of evidence. . . . Thus, while the court in determining a motion for summary judgment does not ‘try’ the case, the court is bound to consider the competency of the evidence presented.

(*Sinai Memorial Chapel v. Dudler* (1991) 231 Cal.App.3d 190, 196-97 (quotation marks and multiple citations omitted).)

Hence, there is no evidence in the record conflicting with Plaintiff’s evidence. Accordingly, Plaintiff’s eleven undisputed material facts as to the first cause of action (Separate Statement, pp. 2-3) are undisputed and Plaintiff has carried its burden.

Since “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the Motion is GRANTED. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff is to submit a proposed judgment for \$15,457.51 for Defendant’s debt.

The Court strikes the memorandum of costs for \$960.00 as premature because judgment has not been entered. Plaintiff may file a memorandum of costs within the statutory time after judgment is entered.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court’s signature a written order and judgment consistent with the Court’s ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 11

25-CLJ-08366

WELLS FARGO BANK, N.A. VS. STEVEN M BANCROFT

WELLS FARGO BANK, N.A.
STEVEN M BANCROFT

EDGAR B LOPEZ

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING:

The court DENIES without prejudice plaintiff Wells Fargo Bank N.A.'s unopposed motion for an order deeming the truth of the matters specified in plaintiff's request for admissions for failure to provide proper notice to defendant Steven M. Bancroft.

In the notice of motion, plaintiff put the date of July 7, 2026 as the hearing date. Then the clerk's office changed the hearing date to July 21, 2026. The court file shows a proof of service filed April 14, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.
